

Crl.Misc.No.3134-B/2014

Mst. Abida Bibi.

The State, etc.

25.03.2014

Mr. Muhammad Kamran Butt, Advocate with petitioner.

Ch. Muhammad Mustafa, DPG.

Muhammad Asghar, S.I. along with the record.

Through this petition, petitioner Mst. Abida Bibi seeks pre-arrest bail in case F.I.R. No.36 dated 13.01.2014, offence under Section 9(c) of the Control of Narcotic Substance Act, 1997 registered at Police Station Sabzimandi, Gujranwala. Allegation against the petitioner is that when the Police party tried to apprehend her, she went into the house of her father and bolted the door from inside. From the shopping bag left by the petitioner, charas weighing 1065 grams was recovered.

2. Learned counsel for the petitioner contends that the story narrated in the FIR is improbable; that nothing is to be recovered from possession of the petitioner; that after registration of case FIR No.35/2014 against the husband of the petitioner, lodging of separate FIR in the same occurrence is based upon the mala fide of the prosecution; that she has been implicated in this case only because of being wife of the accused of the supra referred FIR; that sending the petitioner behind the bars only to enable her to apply for post arrest bail shall not serve any useful purpose, therefore, the petitioner is entitled to the confirmation of her ad interim pre-arrest bail.

3. On the other hand, learned Deputy Prosecutor General opposing this bail petition contends that huge quantity of narcotic has been recovered from the petitioner; that the bag containing narcotic was thrown at the time of the raid; that pre-arrest bail is an extraordinary relief which is meant to safeguard the respectables from humiliation of arrest and detention. The petitioner is not entitled to the grant of pre-arrest bail.

4. Heard. Record perused.

5. The perusal of connected FIR No.35 dated 13.1.2014 registered u/s 9 (c) of the Control of Narcotics Substances Act, 1997 and section 186 PPC at the same Police Station upon the complaint of the same complainant, against the husband of the petitioner regarding the same occurrence for which the petitioner has been booked in this case, prima facie create doubts about the culpability of the petitioner. Unfortunately it has become the trend of the police that the innocent people are implicated in criminal cases of heinous nature besides the actual culprits. In this regard, a relevant portion of paragraph of the judgment titled “**Tariq Bashir and others vs. The State**” reported as (1994 PSC (Crl.) 931 is respectfully referred as under:-

“It is by now judiciously recognized that there is a tendency in our country to involve innocent persons with the guilty. Once an innocent person is falsely involved in a serious case then he has to remain in jail for considerable time. Normally it takes two years to conclude the trial. When a person is detained in the jail, all his dependents also suffer hardships. The ultimate conviction and incarceration of a guilty person can repair the wrong caused by a mistaken relief of interim bail

granted to him, but no satisfactory reparation can be offered to an innocent man for his unjustified incarceration at any stage of the case albeit his acquittal in the long run. So, whenever reasonable doubt arises with regard to the participation of an accused person in the crime, he should not be deprived of the benefit of bail.”

This situation necessitates the conscious interference of the Courts to safeguard the honour, dignity, credibility of the innocent citizens.

The allegation against the accused-petitioner who is a lady, is that she fled away in presence of the four police officials requires further inquiry. From the tentative assessment of the available record, it has become a good case for extending relief of bail to the petitioner. Sending the petitioner behind the bars only to oblige her to come out of the jail after a few days on post arrest bail would amount to mockery of law. In this connection, reliance is placed on the cases titled **“Muhammad Aslam Versus State” (PLJ 1999 Cr.C.(Lahore) 1504)** and **“Muhammad Ramzan Versus Zafra Ullah and another” (1986 SCMR 1380).**

In this regard, we find it appropriate to look into the relevance of Section 167 (5) Cr.P.C in the light of which, the present petitioner cannot be kept on physical remand with the police in connection with this case and in view of this situation, refusal of pre-arrest bail to the petitioner is not likely to serve any useful purpose. Nothing is to be recovered from the possession of the petitioner. The petitioner is not having previous criminal record. These circumstances, persuade us to confirm ad interim pre-arrest bail already granted to the petitioner which is hereby confirmed provided her furnishing fresh

bail bonds in the sum of Rs.100,000/- with one surety in the like amount to the satisfaction of learned trial court.

However, the observations made by this Court are tentative in nature and will not affect the merits of the case before the learned trial court.

(Muhammad Anwaarul Haq)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

*Atiq Ahmed**